

As to CAPITAL ONE, the lender stands in the shoes of the dealer and the outcome of the arbitration will be conclusive as to the lender. (See *Pulliam v. HNL Auto Inc.* (2022) 13 Cal.5th 127, 134; *Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782, 786 [equitable estoppel]; *Rowe v. Exline* (2007) 153 Cal.App.4th 1276, 1287 [equitable estoppel].)

Although labeled a request for “public injunctive relief,” this overbroad prayer is not a barrier to arbitration. Based upon the nature of the claims raised in the complaint, the claims are focused on harm to plaintiff and are appropriate for damages not public injunctive relief and do not implicate the *Broughton-Cruz* rule. (See *Clifford v. Quest Software* (2019) 38 Cal.App.5th 745, 755.)

Jessica Fleshman v. City of Fairfield
Case No. CU23-01799

City of Fairfield’s Motion to Continue Trial

TENTATIVE RULING:

CITY OF FAIRFIELD’s (“FAIRFIELD”) motion to continue trial is DENIED. FAIRFIELD moves to continue the trial after one of the two assigned trial attorneys unexpectedly left the law firm.

The law firm retained to represent FAIRFIELD has 20+ attorneys. Ms. Hurtado gave notice to her law firm’s managing partner on April 14, affording 71 days to secure a replacement to assist the other assigned trial attorney. Per moving party, none of the 20+ attorneys employed by the law firm is available to assist in the 25-day trial due to other prior client commitments.

Notably, this is the second trial date set for this case. A prior trial management conference was conducted following which the trial was vacated following a conditional settlement which later fell through.

The moving papers do not establish that all other attorneys in the retained law firm are committed on each day of the scheduled trial, although some minor and brief overlap for individual attorneys may exist. Additionally, the fact that an assigned trial attorney is actually in trial is good cause for a continuance. But the concern that a trial attorney might be in trial is not.

Moving party also indicated an intent to associate another experienced litigator to the case, but that the litigator had a conflicting trial commitment. There are many employment litigation firms in proximity to Solano County given its proximity to Sacramento and the Bay Area. It is unlikely that between April 14 and the filing of this motion on May 1 that no other qualified employment litigation attorney could be identified to associate into this case.

In light of FAIRFIELD's concern that a single trial counsel could not handle a trial of this duration (although there is only a single judicial officer), the court provided a detailed daily trial calendar which shows several dates that the court is not available to be in session during the first two weeks of this trial. Of the 25 estimated days for trial, the first three weeks are partial weeks with only 2 days each week reserved for jury trial. Of the remaining weeks, only 3 weeks are scheduled for 4 days per week while 2 weeks are scheduled for 3 days. This is a significant amount of down time during the trial that counsel may use to be prepared. To this end, the court ordered the parties to meet and confer and establish a daily witness schedule, especially given the number of Evidence Code section 776 proposed witnesses and the operational needs of a fire department.

While the court appreciates the change in circumstances related to a second assigned trial counsel is not ideal, it does not render confirming the trial unfair and is not good cause to continue the trial under these circumstances.

Trial Management Conference – Tentative Rulings

Below please find the Court's tentative rulings in anticipation of the Trial Management Conference scheduled May 28, 2026 at 9:00 a.m.

The court has previously provided a proposed trial calendar which will be reviewed.

A. Statement of the Case:

The court intends to provide the following statement to jurors:

Plaintiff Jessica Fleshman is a Battalion Chief with the City of Fairfield Fire Department. Plaintiff alleges that she has been subjected to a hostile work environment due to harassment and/or discrimination based upon her gender. She further alleges she was retaliated against for reporting the hostile work environment to her employer.

Defendant City of Fairfield denies that Plaintiff has been subjected to discrimination or harassment or that Plaintiff was subjected to a hostile work environment based upon her gender. City of Fairfield further denies that Plaintiff has been retaliated against based upon her report of a hostile work environment.

B. Plaintiff's Trial Management Statement and Motions in Limine

The court reviewed Plaintiffs Trial Management Statement filed July 24, 2025, the Supplemental Motion in Limine No. 5 filed September 2, 2025, and the Supplemental Trial Management Statement filed September 8, 2025. The court has additionally reviewed Plaintiff's Trial Management Statement filed May 13, 2026 and Plaintiff's motions in limine Nos. 1-5 filed May 13, 2026.

1. **Offer of Proof as to Witnesses:** The offer of proof shows an extraordinary number of non-expert witnesses with significant potential overlap in testimony. Plaintiff estimates approximately 35 hours of non-expert trial testimony. Plaintiff is cautioned to consider the court's inherent authority under Evidence Code section 352 to limit cumulative and repetitive testimony.

2. **Plaintiff's Exhibit List:** The court appreciates and commends the ongoing efforts to meet and confer between the parties. Please meet and confer to determine whether any of Plaintiff's 93 identified exhibits can be classified as joint exhibits and whether admission into evidence can be stipulated. Provide an updated list of joint or stipulated exhibits. (See Amended Trial Management Order 1/9/26 section 5.a., p. 6.)

Given the volume of proposed exhibits, Plaintiff should be prepared at the close of trial to provide 12 binders with sets of admitted exhibits for each juror's use during jury deliberations.

3. **Jury Questionnaire** The court suggests the parties meet and confer on a questionnaire that is **brief and focused**. The logistics of managing an eight page questionnaire are difficult. (Jury services does not have desks or tables for all jurors.) Additionally, it is the court's experience that generic written questionnaires are not useful, i.e. place of birth, schools attended, members of household etc. Priority should be the "for cause" questions and questions involving sensitive information: do you know any of these witnesses? have you experienced discrimination or harassment? Have you been accused of discrimination or harassment? Answers to these questions will permit the parties to complete a paper-screening and determine if potential jurors should be excused for cause before convening for further selection. The other generic questions do not assist in a "for cause" paper screening.

4. **Plaintiff's Motions in Limine:**

Plaintiff's MIL 1: Exclude Investigation of Attorney Renee Jansen. City does not oppose this motion. **GRANTED.**

Plaintiff's MIL2: Exclude opinion testimony whether Plaintiff has been treated differently on the basis of illegal animus. **GRANTED IN PART AND DENIED IN PART.** No witness can testify as to a legal conclusion. Lay opinion is admissible as to whether a co-worker or subordinate was treated differently than other co-workers or subordinates. Parties are advised the court will exercise its discretion pursuant to Evidence Code section 352 to exclude duplicative testimony.

Plaintiff's MIL3: Exclude "Happy Camper" testimony. **DENIED.** Testimony of similarly situated individuals as to the general work atmosphere is relevant to a claim of hostile work environment discrimination, subject to Evidence Code section 352. To the extent that Plaintiff's claims would be buttressed by testimony of similarly situated persons experiencing a hostile work environment, Plaintiff's claims can also be negated by similarly situated persons not sharing the same alleged experience.

Plaintiff's MIL4: Exclude evidence of payments by collateral sources (i.e. workers' compensation). **GRANTED.**

Plaintiff's MIL5: Exclude Defendant's "Fire Operations" Expert. **GRANTED IN PART AND DENIED IN PART.** "Expert" opinion testimony regarding laws

concerning union rights and “best practices” in unionized Fire Departments is excluded. This constitutes testimony concerning the law and only the court may instruct the jury. Expert testimony whether conduct is aggressive and dismissive is excluded. Expert opinion regarding an ultimate fact, i.e. whether a statement was legal or illegal, protected or unprotected, is excluded. The parties were invited to submit proposed pinpoint instruction(s) to address purported protected and unprotected union activity and speech. With respect to expert opinion regarding firefighter training and operations best practices, Plaintiff’s motion in limine is denied. Plaintiff’s issues address the weight but not admissibility of the expert opinions. Defendant is cautioned that should the defense elicit opinion testimony from other non-expert witnesses regarding fire operations and training who appear to have the same or similar experience or specialized knowledge, the court may exclude this witness’s testimony as cumulative pursuant to Evidence Code section 352.

5. Proposed Jury Instructions and Verdict Forms:

The court reserves over jury instructions and verdict forms with the following exceptions:

- a. The court does not use CACI 112
- b. Plaintiff to provide a draft of a completed CACI 2505, 2507, 2523, 3903.
- c. The court agrees with the defense that a special verdict form is more suitable in this case than a general verdict form given the findings the jury will need to make for each cause of action. Plaintiff to provide a draft single special verdict form.

C. Defendant’s Trial Management Statement and Motions in Limine

The court reviewed Defendant’s Trial Management Statement filed July 24, 2025 and Supplemental Trial Management Conference Statement filed August 27, 2025. The court additionally reviewed Defendant’s motions in limine 1-6 filed May 13, 2026.

1. **Offer of Proof as to Witnesses:** The offer of proof shows an extraordinary number of witnesses with significant potential overlap in testimony. Defendant estimates 54 hours in defense testimony. Defendant is cautioned to consider the court’s inherent authority under Evidence Code section 352 to limit cumulative and repetitive testimony.
2. **Defendant’s Exhibit List:** The court appreciates and commends the ongoing efforts to meet and confer between the parties. Please meet and confer to determine whether any of Defendant’s 36 identified exhibits can be classified as joint exhibits and whether admission into evidence can be stipulated. Provide an updated list of joint or stipulated exhibits. (See Amended Trial Management Order 1/9/26 section 5.a., p. 6.)
Given the volume of proposed exhibits, Defendant should be prepared at the close of trial to provide 12 binders with sets of admitted exhibits for each juror’s use during jury deliberations.

3. Defendant’s Motions in Limine:

Defendant's Updated MIL 1: Exclude Plaintiff's claims that the city be held liable for union concerted activity. **DENIED.** It will be the province of the factfinder to determine whether alleged conduct constituted protected or unprotected union activity versus unprotected activity by City employees and supervisors which created or failed to correct Plaintiff from a hostile workplace based upon gender or retaliation. Unlike tort liability, FEHA liability is not based on comparative fault. Jury instructions are appropriate to address Defendant's concern that City not be held liable for union activity.

Defendant's Updated MIL2: Exclude Plaintiff's claims that her peers and subordinates in the department shunned her socially. **DENIED.** The testimony is relevant to Plaintiff's claim of hostile work environment and retaliation for protected conduct. Jury instructions are appropriate to address Defendant's concern that an employer cannot force employees to socialize with one another to avoid FEHA liability.

Defendant's MIL3: Exclude Plaintiff's claims that she suffers from heart palpitations. **DENIED IN PART AND GRANTED IN PART.** Plaintiff is not qualified to express an expert opinion as to causation. She may describe her symptoms she associated with anxiety. A 402 hearing shall be conducted prior to any expert testimony regarding causation related to heart palpitations given the nature of workers' compensation presumptions concerning causation. *The parties shall clarify to the jury that Plaintiff is not seeking damages for any physical injury.*

Defendant's MIL 4: Preclude Plaintiff from claiming she was denied a promotion due to discrimination or retaliation. **GRANTED.** The court understands that in discovery Plaintiff did not make this claim.

Defendant's MIL 5: Preclude Plaintiff from claiming discrimination, harassment or retaliation not identified in her discovery responses. **GRANTED.** Notably, Defendant's MIL refers to the supplemental 2025 discovery responses.

4. **Proposed Jury Instructions and Verdict Form:**

5.

The court reserves over proposed jury instructions and verdict forms.

The court agrees with the defense that a special verdict form is more suitable in this case than a general verdict form given the findings the jury will need to make for each cause of action. Defendant to provide a draft single special verdict form.

Please meet and confer regarding retention of a single court reporter between the parties for each day of trial. The court reporter must be available during jury deliberations for read-back or have prepared a final transcript. An order appointing the reporter pro tem shall be submitted in advance to ensure the reporter is available and qualified. The court will not continue the case due to the absence of a reporter.

Parties shall make arrangements with the courtroom clerk to pre-mark exhibits and to lodge all originals of transcripts prior to trial.

Please reduce all stipulations to writing. The stipulations will be marked as a court exhibit and deemed admitted. Parties to notify the court when they wish the court to read the stipulation to the jury.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002